

The University of Rajasthan (Amendment) Act, 1962

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[The University of Rajasthan \(Amendment\) Act, 1962](#)

[Rajasthan Act](#)

[19 of 1962](#)

[\[Received the assent of the Governor on the 8th day of November, 1962.\]](#)

[Notification No. E. 7\(35\) L/62. dated 9-11-1952, Published in Rajasthan Gazette, Extraordinary, Part IV-A, dated 10-11-1962. - The following Act of the Rajasthan State Legislature received the assent of the Governor on the 8th day of November, 1962, and is published for general information:-](#)

[An Act further to amend the University of Rajasthan Act, 1946.](#)

[Be it enacted by the Rajasthan State Legislature in the Thirteenth Year of the Republic of India as follows:-](#)

[1.](#)

[Short title and commencement.](#)

(1)

This Act may be called the University of Rajasthan (Amendment) Act, 1962.

(2)

[It shall come into force on such date as the State Government may, by notification in the Official Gazette, appoint.]

[It shall come into force from 12-11-1962 by Notification No. F. 6(155) Edu. Cell-1/62, dated 12-11-1962, Published in Rajasthan Gazette, Extraordinary, Part IV-C, dated 12-11-1962.]

2.

Substitution of new section for section 5.

- For section 5 of the University of Rajasthan Act, 1946, hereinafter referred to as the principal Act, the following section shall be substituted, namely:-

"5. Territorial exercise of powers. - Subject to the provisions of the Jodhpur University Act, 1962 (Rajasthan Act 17 of 1962

) and the Rajasthan Agricultural University Act, 1962 (Rajasthan Act 18 of 1962), the jurisdiction of the University shall extend to and the powers conferred by or under this Act shall be exercisable throughout the territory of the State of Rajasthan."

3.

Substitution of new section for section 12.

- For section 12 of the principal Act, the following section shall be substituted, namely:-

"12. The Vice-Chancellor. - (1) The Vice-Chancellor shall be a whole-time paid officer of the University and shall be appointed by the Chancellor upon the recommendation of a Selection Committee consisting of the following, namely:-

(i)

a person nominated by the Syndicate not connected with the University or any affiliated College or approved institution,

(ii)

a person nominated by the Chairman, University Grants Commission, and

(iii)

an educationist nominated by the Chancellor, and the Chancellor shall appoint one of these three persons as the Chairman of the Committee.

(2)

The emoluments and other conditions of service of the Vice-Chancellor shall be such as may be prescribed by the Statutes, and shall not be varied to his disadvantage after his appointment:

Provided that the present Vice-Chancellor shall continue to be governed by the existing terms and conditions till his present term is over.

(3)

The Vice-Chancellor shall hold office for a period of three years and will be eligible for re-appointment for a second term and such re-appointment shall be made upon the recommendation of the Selection Committee referred to in sub-section

(1):

Provided that no person shall hold the office of the Vice- Chancellor for more than two terms.

(4)

The Vice-Chancellor may, at any time, relinquish office by submitting, not less than 60 days in advance of the date on which he wishes to be relieved, his resignation to the Chancellor.

(5)

Such resignation shall take effect from the date determined by the Chancellor and conveyed to the Vice-Chancellor.

(6)

When a vacancy occur or is likely to occur in the office of the Vice-Chancellor, by reason of leave or any other cause, not being the expiry of term of the incumbent, such vacancy shall be filled, as far as may be, in accordance with the provision of sub-section (1).

(7)

When a temporary vacancy in the office of the Vice-Chancellor occur by reason of leave, illness or otherwise, the Syndicate shall forthwith report the same to the Chancellor who shall make such arrangement for carrying on the office of Vice-Chancellor, as he may deem fit."

4.

Substitution of new section for section 14.

- For section 14 of the principal Act, the following section shall be substituted, namely:-

"14. The Registrar. - (1) The Registrar shall be appointed by the Syndicate on the recommendation of a Selection Committee consisting of the following, namely:-

(i)

the Vice-Chancellor,

(ii)

one person to be nominated by the Syndicate (from amongst its members), and

(iii)

an educationist to be nominated by the Chancellor for each appointment.

(2)

The emoluments and conditions of service of the Registrar shall be such as may be determined by the Syndicate.

(3)

The Registrar shall be ex-officio Secretary of the Senate, the Syndicate and the Academic Council, but shall not be a member of the Syndicate and the Academic Council."

5.

Substitution of new section for section 18.

- For section 18 of the Principal Act, the following section shall be substituted, namely:-

"18. The Senate. - (1) The Senate shall consist of the following persons, namely:-

I. Ex-Officio Members.

(i)

the Chancellor,

(ii)

the Vice-Chancellor,

(iii)

all former Vice-Chancellors,

(iv)

Vice-Chancellors of other Universities in Rajasthan,

(v)

the Registrar,

(vi)

the Deans of Faculty,

(vii)

the Minister for Education, Rajasthan,

(viii)

the Chairman, Board of Secondary Education, Rajasthan,

(ix)

the Director of College Education, Rajasthan,

(x)

the Director of Education (Primary and Secondary) Rajasthan,

(xi)

the Director of Technical Education, Rajasthan,

(xii)

three members, not below the rank of the Head of the following Departments, to be nominated by the State Government, by rotation:-

(i)

Medical,

(ii)

Industries and Commerce,

(iii)

Forest,

- (iv)
Public Work,
- (v)
Mines and Geology, and
- (vi)
Development and Planning,
- (xiii)
the Members of the the syndicate,
- (xiv)
the Heads of University Departments of the status of a Professor or a Reader,
- (xv)
five principals of Post-graduate Colleges, elected by the principals of Post-Graduate Colleges,
- (xvi)
two members of the State Legislature nominated by the Speaker,
- (xvii)
such other ex-officio members, not exceeding four, as maj' be provided for in the Statutes.

II. Life Members.

- (xviii)
every person, who has made a donation to the University at any one time of an amount of, or of property valued at, one lakh of rupees or more, or a representative nominated in this behalf by such person during his life time:
Provided that in the case of the donor being a corporate body the membership shall lost for a period of 20 years from the date of acceptance by the University of such donation.

III. Other Members.

- (xix)
four persons elected by the Academic Council from amongst its members.
- (xx)
four persons, not being teachers, elected by the registered graduates of the University from amongst themselves,
- (xxi)
two principal of degree Colleges, elected by the principals from amongst themselves in the manner prescribed by Statutes,
- (xxii)
one principal of a Medical College, nominated in rotation by the Vice-Chancellor,
- (xxiii)
one principal of an Engineering College, nominated in rotation by the Vice-Chancellor,
- (xxiv)
one principal of a Teacher's Training College, nominated in rotation by the Vice-Chancellor,
- (xxv)
four persons elected by teachers other than the Heads of University Departments and principals of affiliated colleges, from amongst themselves,
- (xxvi)
persons who have rendered distinguished service to education, not exceeding four in number, nominated by the Chancellor, and
- (xxvii)
persons, not exceeding four in number, nominated by the State Government.

(2)
Members of the Senate other than ex-officio members and life members shall hold office for a period of five years."

6.

Substitution of new section for section 21.

- For section 21 of the principal Act, the following section shall be substituted, namely:-

"21. The Syndicate. - The Syndicate shall be the executive body of the University and shall consist of the following persons, namely:-

- (i)
the Vice-Chancellor,
- (ii)
three Deans nominated by the Vice-Chancellor in rotation:
Provided that no Dean shall be nominated for two successive terms,
- (iii)
the Director of College Education,
- (iv)
three educationists to be nominated by the Chancellor,
- (v)
two University Professor nominated by the Vice-Chancellor:
Provided that no University Professor shall be nominated for two successive terms,
- (vi)
two members of the Senate, being non-teachers, elected by the Senate, one of whom shall be a registered graduate,
- (vii)
three principals of Colleges to be elected by them from amongst themselves."

7.

Substitution of new section for section 24.

- For section 24 of the principal Act, the following shall be substituted, namely:-

"24. Faculties. - The University shall include the Faculties of,-

- (1)
Arts;
- (2)
Social Sciences;
- (3)
Science;
- (4)
Commerce;
- (5)
Law;
- (6)
Medicine and Pharmaceutics;
- (7)
Engineering and Technology;
- (8)
Ayurved;
- (9)
Education; and
- (10)

Such other Faculties as may be prescribed by the Statutes."

8.

Substitution of new section for section 24B.

- For section 24-B of the principal Act, the following section shall be substituted, namely:-

"24-B. Deans of Faculties. - (1) There shall be a Dean of each Faculty who shall be appointed by the Vice-Chancellor in the following order of preference, namely:-

- (a)
for the Faculty of Arts, Science, Social Sciences & Commerce-
- (i)
University Professors or Principals of Post-Graduate Colleges;
- (ii)
University Readers in subjects in which there are no University Professors;

Note. - The Principal or the teacher to be appointed as Dean must profess a subject included in the Faculty concerned.

(b)

for the Faculty of Law-

(i)

University Professor of Law or Principals of Law Colleges;

(ii)

University Readers in Law in case there is no University Professor;

(iii)

Heads of the Departments of Law, being whole-time teachers of Law, in affiliated Colleges, which are not separate Law Colleges, not below the rank of Professors;

(c)

for the Faculties of Ayurved, Engineering and Technology, Medicine and Pharmaceutics and Education.-

(i)

University Professors or Principals of post-graduate colleges in the Faculty concerned;

(ii)

Heads of Departments of subjects of the rank of Professors in the Faculty concerned;

(d)

for other Faculties-

the qualifications and conditions of eligibility of the Deans of other Faculties shall be prescribed by the Statutes.

(2)

The Deans shall hold office for a period of three years and no person shall be eligible for re-appointment until a period of atleast three years has lapsed after the expiry of his last term."

9.

Amendment of section 27.

- In section 27 of the principal Act, after clause (13), the following new clause shall be inserted, namely:-

"(13A) the provision for the establishment of the Co-ordination Committee to consider the matter of common interest between the University, other Universities and the State Government."

10.

Deletion of sections 33 and 34B.

- Section 33 and 34-B of the principal Act, shall be deleted.

11.

Removal of doubts and difficulties.

(1)

For the removal of doubts it is hereby declared that the bodies constituted under the principal Act shall cease to exist on the date they are re-constituted in accordance with the provisions made in this Act.

(2)

In any difficulty arises as to the reconstitution of any Authority of the University, after coming into force of the University of Rajasthan (Amendment) Act, 1962, or otherwise in giving effect to the provisions thereof, the State Government may, in consultation with the Vice-Chancellor, as occasion may require, by order, do anything which appears to it necessary for the purpose of removing the difficulty.

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